

Flock Safety Faces New ALPR Restrictions in Missouri

An executive order from Gov. Mike Kehoe puts data, compliance and other guardrails around license plate reading technology. It comes amid a national backlash against Flock and other surveillance technologies.

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Flock Safety

[Flock Safety](#) faces new data, compliance and facial recognition restrictions in Missouri, among the [latest developments](#) in the national [backlash](#) against the supplier of license plate reading technology.

Gov. Mike Kehoe, a Republican, issued an [executive order](#) this week that applies to

state and local agencies that receive state funding and [use such tech.](#)

For starters, such users must permanently delete license plate and vehicle images within 30 days unless part of an “active and ongoing criminal investigation,” or ongoing emergencies and missing person alerts.

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Agencies covered under the order must receive from vendors of the technology “written certification” that data be deleted in 30 days when applicable.

Courts may also order data retention past 30 days.

The order also mandates that data captured by automated license plate reader systems is owned by the agency that uses the technology — not, for instance, vendors and contractors.

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The order prohibits the sale or access to the data for “any non-law enforcement purpose.”

Kehoe’s order also prohibits use of data for anything other than “the administration of criminal justice and bona fide lifesaving efforts” — a reflection of the allegations of [stalking](#) and [other misuses](#) of the license plate reading technology.

Agencies cannot integrate automatic AI-powered facial recognition into these tools, either, according to the order.

Flock has come under fire for its auditing practices — and has [revised those rules](#) in recent months — but Kehoe told agencies covered by the order to “ensure every

query records the user's identity and a valid active case number or specific law enforcement justification.”

Penalties for misuse could include criminal charges.

In a statement emailed to *Government Technology* on Friday, a Flock Safety spokesperson said the company “supports strong guardrails that protect privacy, ensure accountability and preserve its important public safety uses.”

The spokesperson pointed out that Flock’s technology [helps police solve crimes](#) and find missing people and added that “clear rules are critical to maintaining public trust in these tools.”

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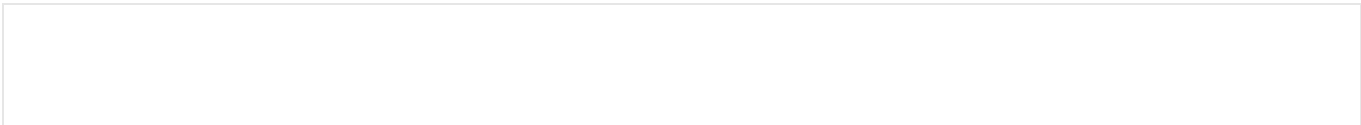
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